

ORIGINAL

(S E R V E D)
(MARCH 1, 2000)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

DOCKET NO 00-04

AL KOGAN d/b/a GALAWAY INTERNATIONAL

v

WORLD EXPRESS SHIPPING, TRANSPORTATION AND FORWARDING SERVICES,
INC D/B/A W.E.S T FORWARDING SERVICES (FMC Lic. #3118-R)

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint was filed by Al Kogan d/b/a Galaway International ("Complainant"), against World Express Shipping, Transportation and Forwarding Services, Inc d/b/a W E S T Forwarding Services (FMC Lic. # 3 118-R) ("Respondent") Complainant alleges that Respondent, engaged in the freight forwarding and shipping business as both an ocean freight forwarder and a non-vessel operating carrier, violated sections 1 O(b)(l), 1 O(b)(S), 1 O(b)(6)(E), 10(b)(12) and 10(d)(1) of the Shipping Act of 1984, 46 U S C app §§ 1709(b)(l), 1709(b)(5), 1709(b)(6)(E), 1709(b)(12) and 1709(d)(l), ("1984 Act") in connection with a shipment of a container of auto parts from Chicago, Illinois, to Moscow, Russia. Complainant alleges that these violations were caused by Respondent failing to follow Complainant's instructions to route the container through Kotka, Finland, thereby forcing Complainant to pay more than the original amount quoted by Respondent; by discriminating against Complainant in delaying the shipment to Kotka, causing Complainant to lose his customer and in refusing to release the container in Kotka, causing

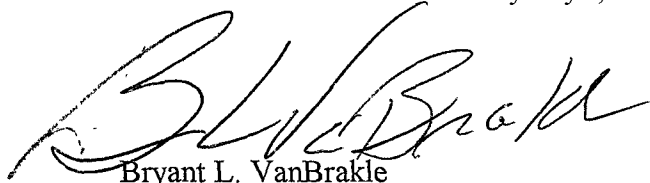
Complainant to incur demur-rage charges and damages and costs related to the eventual delivery of the goods, subjecting Complainant to unfair and discriminatory practices in connection with the adjustment and settlement of the claims involved with the container; subjecting Complainant to an unreasonable refusal to deal and undue and unreasonable prejudice by holding the container hostage in Kotka, and by improperly billing Complainant and refusing to cooperate with Complainant and thereby failing to establish, observe, and enforce just and reasonable practices relating to or connected with receiving, handling, storing or delivery property

Additionally, Complainant alleges that Respondent violated the following Commission rules under 46 CFR Part 510 (1998) §§510.21(f)(1998), by placing false information on the involved shipping documents, 5 10.22(b)(1998), by withholding information concerning the shipment; 5 10.22(c)(1998), by failing to exercise due diligence concerning the shipment; 510.22(d)(1998), by preparing erroneous documents in connection with the shipment; 510.22(g)(1998), by failing to substantiate its invoice charges or to provide true copies of its underlying documents for its invoices when requested by the Complainant; 510.22(j)(1998), by failing to account for the overpayments, adjustments of charges, reductions in rates, insurance refunds and other sums due Complainant; 510.23(a)(1998), by failing to fully disclose Complainant's identity in Respondent's dealings with another carrier; 5 10.23(f)(1998), by causing duplicative compensation for services, and 5 10 23(h), by receiving compensation in connection with a shipment in which it has a beneficial interest.

Complainant requests that the Commission order Respondent to cease and desist from the aforesaid violations of the Act; to establish and put into force such practices as the Commission determines to be lawful and reasonable, to pay Complainant reparations in the sum of \$250,000 with interest and attorney's fees and costs or such other sum as the Commission may determine to be proper as an award of reparation.

This proceeding has been assigned to the office of Administrative Law Judges Hearing in

this matter, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61, and only after consideration has been given by the parties and the presiding officer to the use of alternative forms of dispute resolution. The hearing shall include oral testimony and cross-examination in the discretion of the presiding officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.61, the initial decision of the presiding officer in this proceeding shall be issued by March 2, 2001, and the final decision of the Commission shall be issued by July 2, 2001.

A handwritten signature in black ink, appearing to read 'Bryant L. VanBrakle', is written over the printed name.

Bryant L. VanBrakle
Secretary

00-04

Dated: March 1, 2000.
 Michael J. Armstrong;
Associate Director for Mitigation.
 [FR Doc. 00-5453 Filed 3-6-00; 8:45 am]
 BILLING CODE 6718-04-P

**FEDERAL EMERGENCY
 MANAGEMENT AGENCY**
[FEMA-1314-DR]

**Louisiana; Amendment No. 1 to Notice
 of a Major Disaster Declaration**

AGENCY: Federal Emergency
 Management Agency (FEMA).
 ACTION: Notice.

SUMMARY: This notice amends the notice of a major disaster for the State of Louisiana, (FEMA-1314-DR), dated February 15, 2000, and related determinations.

EFFECTIVE DATE: February 28, 2000.
FOR FURTHER INFORMATION CONTACT:
 Madge Dale, Response and Recovery
 Directorate, Federal Emergency
 Management Agency, Washington, DC
 20472, (202) 646-3772.

SUPPLEMENTARY INFORMATION: The notice of a major disaster for the State of Louisiana is hereby amended to include the following areas among those areas determined to have been adversely affected by the catastrophe declared a major disaster by the President in his declaration of February 15, 2000: Richland Parish for Public Assistance.

(The following Catalog of Federal Domestic Assistance Numbers (CFDA) are to be used for reporting and drawing funds: 83.537 Community Disaster Loans; 83.538 Cpra Brown Fund Program; 83.539 Crisis Counseling; 83.540 Disaster Legal Services Program; 83.541 Disaster Unemployment Assistance (DUA); 83.542, Fire Suppression Assistance; 83.543 Individual and Family Grant (IFG) Program; 83.544, Public Assistance Grants; 83.545 Disaster Housing Program; 83.548, Hazard Mitigation Grant Program)

Patricia K. Stahlschmidt,
*Division Director, Infrastructure Division,
 Response and Recovery Directorate.*
 [FR Doc. 00-5404 Filed 3-6-00; 8:45 am]
 BILLING CODE 6718-02-P

FEDERAL MARITIME COMMISSION
[Docket No. 00-04]

Al Kogan d/b/a Galaway International
 v. World Express Shipping,
 Transportation and Forwarding
 Services, Inc. D/B/A W.E.S.T.
 Forwarding Services (FMC Lic. #3118-
 R); Notice of Filing of Complaint and
 Assignment

Notice is given that a complaint was
 filed by Al Kogan d/b/a Galaway

International ("Complainant"), against
 World Express Shipping, Transportation
 and Forwarding Services, Inc. d/b/a
 W.E.S.T. Forwarding Services (FMC Lic.
 #3118-R) ("Respondent"). Complainant
 alleges that Respondent, engaged in the
 freight forwarding and shipping
 business as both an ocean freight
 forwarder and a non-vessel operating
 carrier, violated sections 10(b)(1),
 10(b)(5), 10(b)(6)(E), 10(b)(12) and
 10(d)(1) of the Shipping Act of 1984, 46
 U.S.C. app. §§ 1709(b)(1), 1709(b)(5),
 1709(b)(6)(E), 1709(b)(12) and
 1709(d)(1), ("1984 Act") in connection
 with a shipment of a container of auto
 parts from Chicago, Illinois, to Moscow,
 Russia. Complainant alleges that these
 violations were caused by Respondent,
 failing to follow Complainant's
 instructions to route the container
 through Kotka, Finland, thereby forcing
 Complainant to pay more than the
 original amount quoted by Respondent;
 by discriminating against Complainant
 in delaying the shipment to Kotka,
 causing Complainant to lose his
 customer and in refusing to release the
 container in Kotka, causing
 Complainant to incur demurrage
 charges and damages and costs related
 to the eventual delivery of the goods;
 subjecting Complainant to unfair and
 discriminatory practices in connection
 with the adjustment and settlement of
 the claims involved with the container;
 subjecting Complainant to an
 unreasonable refusal to deal and undue
 and unreasonable prejudice by holding
 the container hostage in Kotka; and by
 improperly billing Complainant and
 refusing to cooperate with Complainant
 and thereby failing to establish, observe,
 and enforce just and reasonable
 practices relating to or connected with
 receiving, handling, storing or delivery
 property.

Additionally, Complainant alleges
 that Respondent violated the following
 Commission rules under 46 CFR Part
 510 (1998): §§ 510.21(f)(1998), by
 placing false information on the
 involved shipping documents;
 510.22(b)(1998), by withholding
 information concerning the shipment;
 510.22(c)(1998), by failing to exercise
 due diligence concerning the shipment;
 510.22(d)(1998), by preparing erroneous
 documents in connection with the
 shipment; 510.22(g)(1998), by failing to
 substantiate its invoice charges or to
 provide true copies of its underlying
 documents for its invoices when
 requested by the Complainant;
 510.22(j)(1998), by failing to account for
 the overpayments, adjustments of
 charges, reductions in rates, insurance
 refunds and other sums due
 Complainant; 510.23(a)(1998), by failing

to fully disclose Complainant's identity
 in Respondent's dealings with another
 carrier; 510.23(f)(1998), by causing,
 duplicative compensation for services;
 and 510.23(h), by receiving
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Complainant requests that the
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 to pay Complainant reparations in the
 sum of \$250,000 with interest and
 attorney's fees and costs or such other
 sum as the Commission may determine
 to be proper as an award of reparation.

This proceeding has been assigned to
 the office of Administrative Law Judges.
 Hearing in this matter, if any is held,
 shall commence within the time
 limitations prescribed in 46 CFR 502.61,
 and only after consideration has been
 given by the parties and the presiding
 officer to the use of alternative forms of
 dispute resolution. The hearing shall
 include oral testimony and cross-
 examination in the discretion of the
 presiding officer only upon proper
 showing that there are genuine issues of
 material fact that cannot be resolved on
 the basis of sworn statements, affidavits,
 deposition, or other documents or that
 the nature of the matter in issue is such
 that an oral hearing and cross-
 examination are necessary for the
 development of an adequate record.
 Pursuant to the further terms of 46 CFR
 502.61, the initial decision of the
 presiding officer in this proceeding shall
 be issued by March 2, 2001, and the
 final decision of the Commission shall
 be issued by July 2, 2001.

Bryant L. VanBrakle,
Secretary
 [FR Doc. 00-5406 Filed 3-6-00; 8:45 am]
 BILLING CODE 6730-01-M

FEDERAL RESERVE SYSTEM

**Change in Bank Control Notices;
 Acquisitions of Shares of Banks or
 Bank Holding Companies**

The notificants listed below have
 applied under the Change in Bank
 Control Act (12 U.S.C. 1817(j)) and